PRIVILEGED AND CONFIDENTIAL · ATTORNEY-CLIENT COMMUNICATION

Berman Separation: Briefing for Counsel

Prepared for Erica Rocush, O'Hagan Meyer · Parakeet Communities · September 26, 2026
DocSend: docsend.com/view/s/cyju8gy7mkezbv9u

1. Where things stand

David Berman joined in April 2025 as Corporate Controller, heading accounting and finance. In early September we decided to part ways and offered a negotiated separation. He retained The Employment Law Group (Adam Carter) on 9/10. Our employment counsel, Karen Doner (Doner Law), sent a draft agreement on 9/14. His counter came back on 9/18, roughly seven times our number, and we haven't responded on substance. A legal hold has been in place since 9/22 on his email and on Daniel Bennett's, a hire who reports to him.

2. Timeline

Date	Event
3/19/25	Offer letter signed
3/25/26	First forward of company bank statements to his personal Gmail (see section 3)
9/10/26	His counsel contacts us. Karen takes over all contact
9/14/26	Our draft separation agreement sent
9/15/26	Lowenstein Sandler (equity plan counsel) revises the equity redemption language
9/18/26	His redlined counter received, marked for settlement purposes only
9/22/26	Legal hold instituted
9/23/26	His counsel follows up. Karen acknowledges and says we're still reviewing

3. What we found in his email

We pulled 47 emails he sent or copied outside the company and converted them to PDF exhibits. **27 went to his personal Gmail** (bermandavid11@gmail.com):

- **3/25/26:** ten months of company bank statements (JPM account ending 5222, May 2025 to Feb 2026) under the subject "Fraud Bank Statements," plus the Sep 2025 statement the same day. Exhibits E001 and E002
- **April to June:** the equity plan LLC agreement, the equity K-1s and two Rose Consulting items. E003, E004, E006, E007
- **9/2 to 9/16, after separation talks began:** 18 more, including his executed equity award, our intercompany reconciliation, the floorplan lender tie-out, bank transfer and closure instructions, Rent Manager usernames and profiles, and the auditor point-of-contact email
- His Gmail also sits on CC or BCC on three internal threads. E010, E014, E018

Each exhibit opens with a cover sheet showing the send time and a SHA-256 hash of the original email file. The originals are untouched and under the hold.

4. What's in DocSend

Folder	Contents	Start with
00 (top level)	This briefing, plus Jon's side-by-side of our draft vs his counter	00_Draft_vs_Counter_Summary_2026-09-26.pdf
01 Employment and Equity	Offer letter set, background check, hiring workflow, 90-day plan	01-01_2025-03-19_Offer-Letter-Signed.pdf

02 Separation Negotiation	Our 9/14 draft, Lowenstein's 9/15 revision and his 9/18 counter redline	His counter redline (d3)
03 Performance and Conduct	Notes to file, complaints, missed payments and the performance record, January to August 2026	03-00_2026-08-28_Employee-Report-Timeline.pdf
04 Fact-Finding Evidence	The 47 email exhibits (E001 to E047) plus an index with hashes and page counts	00_Exhibit_Index.csv, then E001

Exhibit names read **E###_Date_Category_Topic**. Category is PERSONAL (went to his Gmail), INTERNAL, AUDITOR (our auditor or investor diligence) or COUNSEL.

5. What we'd like your view on

1. Scope of your engagement and how you'd work alongside Doner Law
2. How to answer the 9/18 counter, and whether the personal email forwarding changes that
3. Whether to send a return and delete demand for company data on his personal accounts, and how
4. Our exposure on the positions his counsel is setting up: Maryland law and venue, a "resignation for Good Reason" label, and payments recast as wages due in one day
5. His requests that pull in our investor: adding Jadian as a party and a reference letter on their letterhead
6. Timing. We want this resolved cleanly and without litigation ahead of a pending recapitalization